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EXTRAORDINARY
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GOVERNMENT OF PAKISTAN

MINISTRY OF LAW

NOTIFICATION

Rawalpindi, the 19th June 1961

No. F. 1(23)/60-Legis.—The following Ordinance made by the President on the 10th June, 1961, is hereby published for general information :—

ORDINANCE No. XXI OF 1961

AN

ORDINANCE

to amend the Muslim Family Laws Ordinance, 1961

WHEREAS it is expedient to amend the Muslim Family Laws Ordinance, 1961 (VIII of 1961) ;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title.—This Ordinance may be called the Muslim Family Laws (Amendment) Ordinance, 1961.

2. Amendment of section 2, Ordinance VIII of 1961.—In the Muslim Family Laws Ordinance, 1961, hereinafter referred to as the said Ordinance, in section 2,—

(1) in clause (a), the words “of the Union Council” shall be omitted, and for the semi-colon at the end a colon shall be substituted and thereafter the following proviso shall be added, namely :—

“Provided that where any party fails to nominate a representative within the prescribed time, the body formed without such representative shall be the Arbitration Council ;” ;

(2) for clause (b) the following shall be substituted, namely :—

“(b) “Chairman” means the Chairman of the Union Council or a person appointed by the Central or a Provincial Government, or by an officer authorized in that behalf by any such Government, to discharge the functions of Chairman under this Ordinance :

Provided that where the Chairman of the Union Council is a non-Muslim, or he himself wishes to make an application to the Arbitration Council, or is, owing to illness or any other reason, unable to discharge the functions of Chairman, the Council shall elect one of its Muslim members as Chairman for the purposes of this Ordinance ;” ; and

(3) in clause (d), for the words “having jurisdiction in the area concerned” the words “having in the matter jurisdiction as prescribed” shall be substituted.

3. Amendment of section 8, Ordinance VIII of 1961.—In the said Ordinance, in section 8, in sub-section (5), for the figure and brackets “(2)” the figure and brackets “(3)” shall be substituted.

MOHAMMAD AYUB KHAN, H. Pk., H. J.,
FIELD MARSHAL,
President.

ABDUL HAMID,
Secretary.